

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions, STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

C.A. No. 2:25-cv-00405-RMG-MGB

**DEFENDANTS' RESPONSE TO PLAINTIFF'S MOTION FOR
PROTECTIVE ORDER, MOTION TO QUASH DEFENDANTS' SUBPOENAS FOR
MEDICAL RECORDS, AND MOTION FOR SANCTIONS**

Defendants Curtiss Wright Electro-Mechanical Corporation, Stephanie Lanier, and Shane Sablitsky (collectively "Defendants"), by and through their undersigned counsel, submit this Response in Opposition to Plaintiff's Motion for Protective Order, Motion to Quash Defendants' Subpoenas for Medical Records, and Motion for Sanctions (ECF No. 220).

Defendants' records subpoenas to Plaintiff's treating therapist and her current employer properly seek discoverable information and are a standard part of discovery in any employment lawsuit when a plaintiff puts her mental health at issue by claiming emotional distress damages. Plaintiff's baseless attacks on Defendants and their counsel are unwarranted and inappropriate. Her Motion should be denied in its entirety.

A. Plaintiff's Motion for Protective Order and Motion to Quash Related to Her Psychotherapy Records Should Be Denied.

The background of Plaintiff's Motion for Protective Order, to Quash, and for Sanctions, relates to two subpoenas that were served following disclosures in her deposition on her then-

current employer and her therapist. As noted in prior filings (ECF Nos. 207 at 6-7 and 216 at 3-4), Plaintiff first disclosed during her deposition that she is being treated by a therapist related to her mental health. Plaintiff claims emotional distress damages and evidently intends to introduce at trial a statement from her therapist, plus her own testimony regarding her alleged emotional distress, and so these records are directly relevant to her claims in this case. Even records of her treatment by this provider prior to her employment with Curtiss Wright are relevant because Plaintiff's mental health prior to her employment impacts what damages she can or cannot claim in this case. *See Koukuntla v. Toll Bros.*, 2025 U.S. Dist. LEXIS 49247, *6 (E.D.N.C. Mar. 18, 2025) ("Plaintiff's medical history prior to July 2023 is relevant to his emotional distress damages claim, and the court finds that in this case a historical five-year period is not overly broad or disproportional to the needs of the case" and collecting cases). Plaintiff's attempt to offer a written statement from her therapist in lieu of full discovery of her therapy records is unacceptable and would significantly prejudice Defendants.

Further, Plaintiff's contention that Defendants are harassing her by requesting this information from her therapist is meritless. She has placed her mental health at issue by claiming emotional distress damages in this case, therefore records from the only provider who Plaintiff has been treated by for her mental health are discoverable. *See, e.g., EEOC v. Sheffield Fin. LLC*, 2007 U.S. Dist. LEXIS 43070, *12-19 (M.D.N.C. June 13, 2007) (granting motion to compel production of plaintiff's medical records because they were relevant to his request for compensatory damages for medical problems allegedly caused by defendant's discriminatory conduct). Defendants have a right to determine whether Plaintiff's emotional distress was caused by some other event, person, or entity. There is nothing malicious about this request.

According to Plaintiff's own account, she has waived any psychotherapist privilege because she intends to offer "a summary therapist letter" and she is claiming emotional distress. Though she claims in her Motion that she is seeking only "garden-variety emotional distress" that is not what she stated in her deposition. Further, even "garden-variety" emotional distress claims can waive any psychotherapist privilege that may exist. . *See, e.g., Stokes v. IKEA US Retail, LLC*, 2023 U.S. Dist. LEXIS 24800, *6-7 (D. Md. Feb. 13, 2023) ("Even in cases where a plaintiff alleges 'garden variety' compensatory damages or emotional distress, courts have found that 'medical and psychological information sought by [] interrogatories and requests for production are relevant as to both causation and the extent of plaintiff's alleged injuries and damages.'" (quoting *Carpenter v. RES-CARE Health Servs*, 2013 U.S. Dist. LEXIS 57928 at *2 (S.D.W. Va. Apr. 23, 2013) (quoting *Sheffield*, 2007 U.S. Dist. LEXIS 43070 at *4 (M.D.N.C. Jun. 13, 2007) (collecting cases in which courts deemed medical records relevant in light of a plaintiff alleging emotional distress or garden variety compensatory damages))).

B. Plaintiff's Motion to Quash the Subpoena to Amentum Should Be Denied.

The other subpoena at issue is a subpoena for Plaintiff's employment records with her most recent employer, Amentum. These records are directly relevant to the issue of damages (as any income received from Amentum impacts Plaintiff's claim for lost wages, and the reason for Plaintiff's termination from Amentum could cut off any claim for front pay). These records are also relevant to Plaintiff's credibility because she is asserting nearly identical claims against Amentum that she is asserting in this case. Courts have consistently recognized that records from a subsequent employer are discoverable in an employment lawsuit.¹ *See, e.g., Glover v. Stewart*,

¹ Plaintiff also makes passing reference to her tax returns. For the reasons stated at ECF Nos. 207 and 216, Plaintiff's tax returns are relevant and discoverable.

2022 U.S. Dist. LEXIS 242217, (N.D.W. Va. Apr. 4, 2022) (finding subpoena to subsequent employer seeking communications, resumes, salary, payroll records, time records, and termination documents were discoverable); *Williams v. United States Env't Servs.*, 2016 U.S. Dist. LEXIS 19613, 2016 WL 684607, at *6 (M.D. La. Feb. 18, 2016) (finding defendant entitled to records from subsequent employers regarding rates of pay and job positions held as relevant to “interim earnings” and “back pay” and whether the plaintiff has made efforts to mitigate damages); *Jones v. Steel Fabricators of Monroe*, 2015 U.S. Dist. LEXIS 129583, 2015 WL 5676838, at *3-4 (W.D. La. Sep. 25, 2015) (denying motion to quash subpoena to the plaintiff’s current employer in Title VII case because the Court found that the information in his employment record was relevant to the plaintiff’s duty to mitigate damages by finding comparable employment); *Stewart v. Orion Fed. Credit Union*, 285 F.R.D. 395, 399 (W.D. Tenn. 2012) (denying motion for protective order as to the subpoena served on the plaintiff’s subsequent and current employers, finding that employment records including performance reviews, applications, resumes, and payroll history were discoverable).

C. Plaintiff’s Request for Sanctions Is Improper.

Plaintiff’s conclusory accusation that Defendants have made misrepresentations to the Court and have acted in bad faith is false, reckless, and would be defamatory if made in any other context. Defendants have been and will continue to be candid with the Court. The previously filed email communications with Plaintiff speak for themselves. See ECF No. 215. Plaintiff fails to identify any reasonable basis to impose sanctions on Defendants.² Accordingly, her Motion for Sanctions should be denied.

² Requesting sanctions has become a part of nearly every Motion Plaintiff has filed with the Court, as this is now her fourth request for sanctions against Defendants, none of which have been found to be meritorious.

Respectfully submitted this 26th day of November, 2025.

s/Joseph V. Valenza

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Curtiss Wright Electro Mechanical
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Air Solutions, Stephanie Lanier, and
Shane Sablotsky,

Defendants.

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CERTIFICATE OF SERVICE

The undersigned certifies that on November 26, 2025, a copy of the foregoing **DEFENDANTS' RESPONSE TO PLAINTIFF'S MOTION FOR PROTECTIVE ORDER, MOTION TO QUASH DEFENDANTS' SUBPOENAS FOR MEDICAL RECORDS, AND MOTION FOR SANCTIONS** has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

Pro Se Plaintiff

s/ Joseph V. Valenza

Joseph V. Valenza